

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #1	CCRB Case #: 201907433	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 08/08/2019 3:20 PM	Location of Incident: Flatbush Avenue Extension and Cathedral Place	Precinct: 84	18 Mo. SOL 2/8/2021	EO SOL 9/25/2021	
Date/Time CV Reported Thu, 08/08/2019 8:55 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/21/2019 11:07 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Matthew Mcclusky	03563	941071	088 DET

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Matthew Mcclusky	Abuse: Detective Matthew Mcclusky stopped the vehicle in which § 87(2)(b) was an occupant.	
B.DT3 Matthew Mcclusky	Abuse: Detective Matthew Mcclusky drew his gun.	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	

Case Summary

On August 8, 2019, Captain John Glismann from the Applicant Processing Division, reported the following complaint to the IAB command center on behalf of § 87(2)(b) § 87(2)(b) § 87(2)(b). The complaint was received at the CCRB on August 21, 2019.

On August 8, 2019, § 87(2)(b) drove to work and parked near the intersection of Flatbush Avenue Extension and Cathedral Place in Brooklyn. Detective Matthew McClusky of the 88th Precinct Detective Squad pulled over behind him in an unmarked vehicle (**Allegation A – Abuse of Authority: § 87(2)(g)**). Det. McClusky approached the vehicle with his gun drawn (**Allegation B – Abuse of Authority: § 87(2)(g)**). Det. McClusky told § 87(2)(b) that he had been trying to pull him over for several blocks. § 87(2)(b) told Det. McClusky § 87(2)(b) and he was let go with a warning. § 87(2)(g), § 87(4-b)

Det McClusky was not assigned a body worn camera at the time of this incident (Board Review 01).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Matthew McClusky stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Detective Matthew McClusky drew his gun.

§ 87(2)(b) provided a statement to the CCRB on September 12, 2019 (Board Review 02) and stated that he drove towards § 87(2)(b) turning from St. James Place onto Dekalb Avenue, and eventually parked close to the corner of Fulton Street Extension and Cathedral Place. § 87(2)(b) acknowledged that he was late for work and called § 87(2)(b) on his hands-free device while driving to report that he was running late, but said he was not speeding because there was a lot of traffic along the way. He noticed an unmarked police vehicle pull up behind him with police lights on. Det. McClusky approached, tapped on the trunk of § 87(2)(b) car and told him to roll down the window and put his hands out of the window. § 87(2)(b) turned down the loud music that was playing in his car and complied. Det. McClusky had his firearm drawn and pointed at the ground as he approached the vehicle. § 87(2)(b) did not see at what point Det. McClusky holstered the gun. Det. McClusky told § 87(2)(b) he had been trying to pull him over for several blocks for speeding. He did not accuse § 87(2)(b) of any other traffic infractions. § 87(2)(b) stated that he did not realize Det. McClusky tried to pull him over because he was focused on getting to work and had loud music playing in his vehicle. § 87(2)(b)

Det. McClusky asked for his work identification and § 87(2)(b) provided it. Det. McClusky let § 87(2)(b) leave with a warning.

Det. McClusky was interviewed at the CCRB on October 5, 2020 (Board Review 03). § 87(2)(b), § 87(2)(g) Det McClusky saw § 87(2)(b) vehicle traveling at a high rate of speed on Dekalb Avenue. The vehicle traveled over 25 miles per hour on the left bicycle lane in order to skip around vehicles. Det. McClusky used emergency lights and sirens, which he believed he turned on around St. James Place, in an attempt to pull over § 87(2)(b). § 87(2)(b) did not stop his vehicle and Det. McClusky followed him for 15 to 20 blocks. § 87(2)(b) eventually pulled over at Cathedral Place, at a bus stop. Det. McClusky stated that it was likely that he unholstered his gun and pointed it at the car as he approached as a precaution. § 87(2)(b) rolled down his window and had loud music playing. He turned the music down and put his hands out the window. Det. McClusky did not recall if he actually took his gun out. Det. McClusky believed that if he did take his firearm out, he would have holstered it upon

seeing § 87(2)(b) hands out of the car window. Det. McClusky told § 87(2)(b) that he tried to pull him over for speeding for several blocks and had suspicion that § 87(2)(b) possibly was fleeing from something. § 87(2)(b) told him that he was running extremely late for work. Det. McClusky warned and admonished § 87(2)(b)

According to Patrol Guide Procedure 221-01 (Board Review 04), the decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present. When a uniformed member of the service determines that the potential for serious physical injury is no longer present, the uniformed member of the service will holster the firearm as soon as practicable.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(b), § 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 07).
- Detective McClusky has been a member-of-service for 14 years and has been subject in six complaints and 15 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

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- § 87(2)(b) declined to mediate this complaint.
- As of April 29, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 08).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 1

Investigator: SI Harold Rodriguez 1/22/21
Signature Print Title & Name Date

Squad Leader: Mgr. Joy Almeyda 1.26.21
Signature Print Title & Name Date

Reviewer:
Signature Print Title & Name Date